

take alternative precautions such as dry mopping the area and the location/obstruction of the yellow caution sign fell below the standard of care. The Court finds there is genuine dispute of material fact regarding whether BCFT's conduct fell below the standard of care resulting in a breach of duty. "Thus, it is the jury that "has the burden of deciding not only what the facts are but what the unformulated standard is of reasonable conduct" [Citation]. In sum, it is the trier of fact who decides what the facts are and what reasonable care means within those facts." *Coyle v. Historic Mission Inn Corp.*, supra, 24 Cal.App.5th 627, 640.

BCFT argues that they had no duty to provide any further mitigation or warning of the hazard because it was open and obvious. "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." *Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387. "[W]hile the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition." *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438. Considering the vestibule area encompasses the entrance of the store, it would have been necessary for customers such as Plaintiff to encounter the condition. The Court finds BCFT's defense that the open and obvious hazard negates their duty of care fails.

Defendant's Motion for Summary Judgment is **DENIED**. Defendant lodged a proposed order that will be modified to reflect the Court's ruling.

9:00 a.m. Review Hearings

AHERN, DO, ET AL. VS. PARK, RN

CASE NUMBER: 25CV-0209394

This matter is on calendar for review regarding status of arbitration. No status statements have been filed as ordered. Appearances are necessary on today's calendar to provide a status of arbitration.

CESSNA VS. BROCK

CASE NUMBER: 23CV-0202145

This matter is on calendar for review regarding status of bankruptcy stay. Plaintiff has submitted a Status Conference Statement which indicates that judgment was entered in the bankruptcy proceeding on February 18, 2026 but that the matter has been appealed. This matter is continued to **Tuesday, January 18, 2027, at 9:00 a.m. in Department 64** for review regarding status of bankruptcy stay. Plaintiff shall file a Status Report at least five court days prior to the continued hearing date which addresses the status of the bankruptcy. No appearance is necessary on today's calendar.

EYE VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208669

This matter is on calendar for review regarding status of service, responsive pleadings, and trial setting. Proof of service of summons is now on file for all Defendants. No responsive pleadings have been filed. Plaintiff has submitted a status report stating Plaintiff is in the process of retaining